

WANAware Mutual Non-Disclosure Agreement

This Mutual Non-Disclosure Agreement ("Agreement") is entered into by and between WANAware, Inc, Delaware (USA) corporation, and its Affiliates ("WanAware") and {Customer} ("Company") with a principal place of business at {Customer Address}. It becomes effective the date this Agreement is signed by both Parties ("Effective Date") and shall continue for a period of three (3) year(s) following expiration of this Agreement ("Term"). Company and WanAware may be referred to herein individually as "Party" and collectively as "Parties".

It is understood and agreed that the Parties to this Agreement would each like to provide the other with certain information that may be considered confidential. To ensure the protection of such information and in consideration of the Agreement to exchange said information, the Parties agree as follows:

1. **Confidential Information.** The confidential information to be disclosed under this Agreement ("Confidential Information") can be described as and includes: technical and business information relating to proprietary ideas, patentable ideas and/or trade secrets, existing and/or contemplated products and services, research and development, production, costs, profit and margin information, finances and financial projections, business strategies, customers, clients, marketing, and current or future business plans and models, and any other information that a reasonable party would conclude is confidential or proprietary in nature, regardless of whether such information is designated as "Confidential Information" and/ or in written format, at the time of its disclosure. In addition to the above, Confidential Information shall also include, and the Parties shall have a duty to protect, other confidential and/or sensitive information which is (a) disclosed as such in writing and marked as confidential (or with other similar designation) at the time of disclosure; and/or (b) disclosed by in any other manner and identified as confidential at the time of disclosure.

2. **Use.** The Parties shall use the Confidential Information only for the purpose of evaluating potential business, employment and/or investment relationships with each other. The Parties agree that use of Confidential Information for any other purpose is strictly prohibited; provided that, in the case of any Confidential Information consisting of trade secrets, the obligations of confidentiality and non-use set forth in this Agreement shall survive for so long as such trade secrets are protected as trade secrets under applicable law. The recipient shall notify the discloser of any use or disclosure not permitted under this Agreement immediately upon the discovery of such use or disclosure.

3. **Permitted disclosure.** The Parties shall limit disclosure of Confidential Information within its own organization to its directors, officers, partners, members and/or employees having a need to know and shall not disclose Confidential Information to any third party (whether an individual, corporation, or other entity) without prior written consent. The Parties shall satisfy its obligations under this paragraph if it takes affirmative measures to ensure compliance with these confidentiality obligations by its employees, agents, consultants and others who are permitted access to or use of the Confidential Information. Recipient may disclose discloser's Confidential Information to the extent required by any legal process or valid court order, governmental agency or regulatory authority having actual jurisdiction, provided that recipient furnishes discloser with prompt written notice prior to such contemplated disclosure and reasonably cooperates with discloser to obtain a protective order or other appropriate relief. In the event discloser is unable to obtain such protective order or other relief, recipient shall limit its disclosure to only that portion of the Confidential Information necessary to comply with such requirement as advised by its legal counsel in writing and shall seek confidential treatment thereof.

4. **Information not Covered.** This Agreement imposes no obligation upon the Parties with respect to any Confidential Information (a) that was known by or possessed by recipient, as established by documentary evidence, before receipt; (b) is or becomes a matter of public knowledge through no fault of receiving party; (c) is rightfully received from a third party not owing a duty of confidentiality; (d) is disclosed without a duty of confidentiality to a third party by, or with the authorization of the disclosing party; or (e) is independently developed by the recipient, as established by documentary evidence, without reference to or use of, in whole or in part, any of the disclosing Party's Confidential Information.

5. **No rights conveyed.** This Agreement shall not be construed as creating, conveying, transferring, granting or conferring upon either Party any rights, license or authority in or to the information exchanged, except the limited right to use Confidential Information specified in paragraph 2. Furthermore, and specifically, no license or conveyance of any intellectual property rights is granted or implied by this Agreement.

6. **Return or Destruction of Confidential Information.** Upon termination of this Agreement or as requested by a Party, the other Party shall promptly (a) return all of the Party's Confidential Information (including copies) to the Party or (b) securely delete and destroy (so that it is unreadable or undecipherable through any means) all of the Party's Confidential Information (including copies) and provide written confirmation of such destruction to the Party. Notwithstanding the foregoing, Recipient may retain an archival copy of the Party's Confidential Information to the extent necessary to comply with law or the Party's record retention policies. Additionally, The Party shall have no obligation to destroy electronic copies of Confidential Information that are retained in standard

computer back-up systems. The confidentiality obligations of this Agreement shall continue in full force and effect with regard to any Party who retains Confidential Information.

7. **Termination.** If a Party defaults in the performance of any material provision of this Agreement, the other Party may terminate the Agreement upon ten (10) days written notice if the default is not cured, or, in the other Party's sole discretion, commence actions to cure said default, during such 10-day period.

8. **No other obligations created.** Neither Party has an obligation under this Agreement to purchase any service, goods, or intangibles from the other Party. Furthermore, both Parties acknowledge and agree that the exchange of information under this Agreement shall not commit or bind either Party to any present or future contractual relationship (except as specifically stated herein), nor shall the exchange of information be construed as an inducement to act or not to act in any given manner.

9. **No Right to Reliance.** Neither Party shall be liable to the other in any manner whatsoever for any decisions, obligations, costs or expenses incurred, changes in business practices, plans, organization, products, services, or otherwise, based on either Party's decision to use or rely on any information exchanged under this Agreement.

10. **Remedies.** If there is a breach or threatened breach of any provision of this Agreement, it is agreed and understood that the non-breaching Party may have no adequate remedy in money or other damages and accordingly shall be entitled to injunctive or other equitable relief; provided however, no specification in this Agreement of any particular remedy shall be construed as a waiver or prohibition of any other remedies in the event of a breach or threatened breach of this Agreement.

11. **Governing Law.** This Agreement states the entire agreement between the Parties concerning the disclosure of Confidential Information and supersedes any prior agreements, understandings, or representations with respect thereto. Any addition or modification to this Agreement must be made in writing and signed by authorized representatives of both Parties. This Agreement is made under and shall be construed according to the laws of the State of Delaware, U.S.A. In the event that this agreement, is breached, any and all disputes must be settled in a court of competent jurisdiction in the State of Delaware, U.S.A.

12. **Term.** The obligations of non-disclosure and limitation of use contained herein shall survive termination of this Agreement and shall continue, with respect to Proprietary Information which embodies trade secrets, for so long as such Proprietary Information embodies trade secrets; and with respect to Confidential Information which does not rise

to the level of a trade secret under applicable law, for a period of three (3) years from the Effective Date.

13. **Severability.** If any of the provisions of this Agreement are found to be unenforceable, the remainder shall be enforced as fully as possible, and the unenforceable provision(s) shall be deemed modified to the limited extent required to permit enforcement of the Agreement as a whole.

WHEREFORE, the Parties acknowledge that they have read and understand this Agreement and voluntarily accept the duties and obligations set forth herein. No Party is entering into this Agreement in reliance on, and this Agreement shall not be contradicted or supplemented by, any prior or contemporaneous (i) condition, discussion, promise, statement, understanding, or undertaking; (ii) letter of intent, commitment or approval; or (iii) other agreement or document. This Agreement may not be amended, except pursuant to an instrument in writing executed by each Party, or as expressly provided for herein.

To be effective, this Agreement and any changes to this Agreement must be in writing and signed by an authorized representative of each Party.

	WANAware, Inc
Signature:	Signature:
Printed Name:	Printed Name:
Title:	Title:
Date:	Date: